

Hari Narayan Patel v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 18 July 2013 · Writ-C No. 38362 of 2013 · **Writ dismissed; petitioner relegated to clause 6.5.**

HEADNOTE

A consumer seeking to quash a recovery citation on the ground that electricity bills are incorrect has a statutory remedy under Para 6.5 of the U.P. Electricity Supply Code, 2005, and must raise those objections there; the writ petition is dismissed with liberty to avail that remedy.

FACTUAL SUMMARY

Hari Narayan Patel filed a writ petition in the Allahabad High Court seeking quashing of a citation dated 15 June 2013 for recovery of electricity dues. He submitted that the bills issued by respondent no. 4, the distribution licensee, were incorrect and that he had also applied for permanent disconnection. Counsel for the petitioner, for the licensee, and the Standing Counsel for the State were heard. The Court did not examine the correctness of the bills or the disconnection application.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing objection

HOLDING

A consumer who challenges electricity bills and seeks quashing of a recovery citation has a statutory remedy under Para 6.5 of the U.P. Electricity Supply Code, 2005, where those objections can be raised, considered and decided; the writ petition is dismissed with liberty to avail that remedy. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

A consumer seeking to quash a recovery citation on the ground that electricity bills are incorrect has a statutory remedy under Para 6.5 of the U.P. Electricity Supply Code, 2005, and must raise those objections there; the writ petition is dismissed with liberty to avail that remedy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY BILLS WERE INCORRECT AND WHETHER THE RECOVERY CITATION DATED 15.6.2013 WAS LIABLE TO BE QUASHED

left to be raised under the statutory objection in clause 6.5 ¶ 1